

## Item 15 – Other

Plaintiff argues it does not know what BMW seeks to recover in this Item. In opposition, BMW attaches invoices reflecting \$2,975.83 in costs for the court reporting service at trial and messenger service used for the transportation of documents, including exhibits. In reply, Plaintiff only challenges \$451.12 in messenger services used at trial. Counsel declares these were necessary for trial. The Court denies the request to tax.

**Grant the motion to tax in part.**

2.

| CASE #      | CASE NAME                                       | HEARING NAME                     |
|-------------|-------------------------------------------------|----------------------------------|
| CVRI2405327 | PEREZ vs TOYOTA<br>MOTOR SALES U.S.A.,<br>INC., | MOTION TO SET ASIDE<br>DISMISSAL |

### **Tentative Ruling:**

A motion to set aside is generally governed by California Code of Civil Procedure §473(b). A motion to set aside under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

### **Requirements for Relief under the Discretionary Provision of CCP §473(b)**

#### **Mistake, Inadvertence, Surprise, or Excusable Neglect**

CCP §473(b) grants the trial court discretion to vacate a default judgment (and/or any other step taken in a case, including dismissal, entry of default, or an order) on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

#### **a. Mistake**

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. *People v. Kelly*, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief from default may be granted if the moving party demonstrates a material mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does not know it, an attorney’s mistake of law will be grounds for

relief only if it was reasonable. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38; *McCormick v. Board of Supervisors*, 198 CA3d 352, 360, 243 CR 627, 621. The controlling factors in determining whether an attorney's mistake was reasonable are: (1) the reasonableness of the misconception; and (2) the justifiability of the failure to determine the correct law. *Anderson v. Sherman* (1981) 125 CA3d 228, 178 CR 38.

#### **b. Inadvertence**

Under CCP §473(b), relief from default may be granted if the moving party demonstrates "inadvertence." Inadvertence is defined as lack of heedfulness or attentiveness, inattention, fault from negligence. *Greene v. Montana Brewing Co.*, 32 Mont. 102, 79 P. 693, 694 (internal citations omitted). Inadvertence in the abstract is no plea on which to vacate a default. *Shearman v. Jorgensen* (1895) 106 Cal. 483, 485, 39 P. 863.

#### **c. Surprise**

Under CCP §473(b), relief from default may also be granted if the moving party demonstrates "surprise." Surprise refers to "some condition or situation in which a party...is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." *Credit Managers Ass'n of So. Calif. v. National Independent Business Alliance* (1984) 162 CA3d 1166, 1173, 209 CR 119, 123; *Hearn v. Howard* (2009) 177 CA4th 1193, 1206, 99 CR3d 642, 654.

#### **d. Excusable Neglect**

Discretionary relief from default may be granted where the moving party can show "excusable neglect," i.e., where the moving party can demonstrate that the default could not have been avoided through the exercise of ordinary care. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398; *Jackson v. Bank of America* (1983) 141 CA3d 55, 58, 190 CR 78, 80. The issue boils down to whether the moving party has shown a reasonable excuse for the default. See *Shapiro v. Clark* (2008) 164 CA4th 1128, 1141–1142, 80 CR3d 398, 410 (rejecting "categorical statements about what can be found to constitute excusable neglect").

To determine whether attorney neglect is excusable, the court generally inquires whether a reasonably prudent attorney might have made the same error under similar circumstances. *Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1399, 72 CR2d 188, 198. The mere fact that moving counsel was busy is not by itself enough to justify discretionary relief under CCP §473(b). *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 CA4th 1096, 1112, 159 CR3d 469, 483–484. Coupled with other extenuating circumstances however, "press of business" may be a factor showing the neglect was excusable. See *Elston v. City of Turlock* (1985) 38 C3d 227, 234, 211 CR 416, 420.

Counsel, Brian Cohen, indicates in his declaration that:

"The Court then scheduled an OSC re Dismissal for July 23, 2026. My declaration in advance of this OSC was thus due July 16, 2026. Unfortunately, our firm inadvertently

calendared the hearing for July 24, 2026 rather than July 23, which had this been correct would have made my declaration due July 17, 2026. 5. Because of our firm's calendaring error I filed my declaration on July 17, 2026 thinking I had done so timely. The issue of the attorneys' fees owed to Plaintiffs in this matter remains outstanding and Plaintiffs anticipate needing to file a motion for payment of such fees and costs."

In opposition, counsel Gabrielle Gonzalez, indicates:

"On January 5, 2026, Plaintiffs filed their Notice of Settlement and provided that settlement was conditional, noting a request for dismissal would be filed no later than June 8, 2026. On February 18, 2026, plaintiffs surrendered the subject vehicle. Also in February 2026, the parties reached an impasse on negotiations regarding plaintiffs' attorney's fees/costs and plaintiffs' counsel advised they will file a fee motion."

It would seem to the Court that it was apparent to Plaintiff that a motion for attorney fees and cost would need to be filed, and that the motion would need to be filed before the OSC date of 7/23/2026 or Plaintiff would risk a dismissal. In the time from February to July, a period of five months, Plaintiff neglected to file a motion for fees and is now asking this court to set aside the dismissal to allow Plaintiff to file the fee motion.

Plaintiff's motion and counsel's declaration only deal with the fact that counsel declaration pursuant to RSC Local Rule 3116 was filed a day late and not as to why Plaintiff failed to file their fee motion. The filing of a declaration is not a guarantee that the Court will continue the OSC date. The Court still needs to make a finding of good cause.

### **Accompanied by a Copy of the Proposed Filing**

CCP §473(b) requires that a motion for discretionary relief "be accompanied by a copy of the answer or other pleading proposed to be filed..." However, the term "accompanied" is interpreted "liberally with a view to substantial compliance." *Job v. Farrington* (1989) 209 CA3d 338, 340–341, 257 CR 210, 211. Therefore, relief may be granted even if the answer or other pleading is served and filed separately from the notice of motion. See *Puryear v. Stanley* (1985) 172 CA3d 291, 294, 218 CR 196, 197–198.

Plaintiff seeks to have the Court set aside the dismissal so that Plaintiff can file an attorney fee motion, yet does not included the proposed filing as required by CCP 473.

**The Court denies the motion for this reason.**

### **Requirements for Relief under the Mandatory Provision of CCP §473(b)**

Under CCP §473(b), the court is required to vacate any default or dismissal "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect."